MODULE 5

India's Cyber Crime Laws

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What You Will Learn

By the end of this module you will apply the **right section to the right case** - and defend it in court.

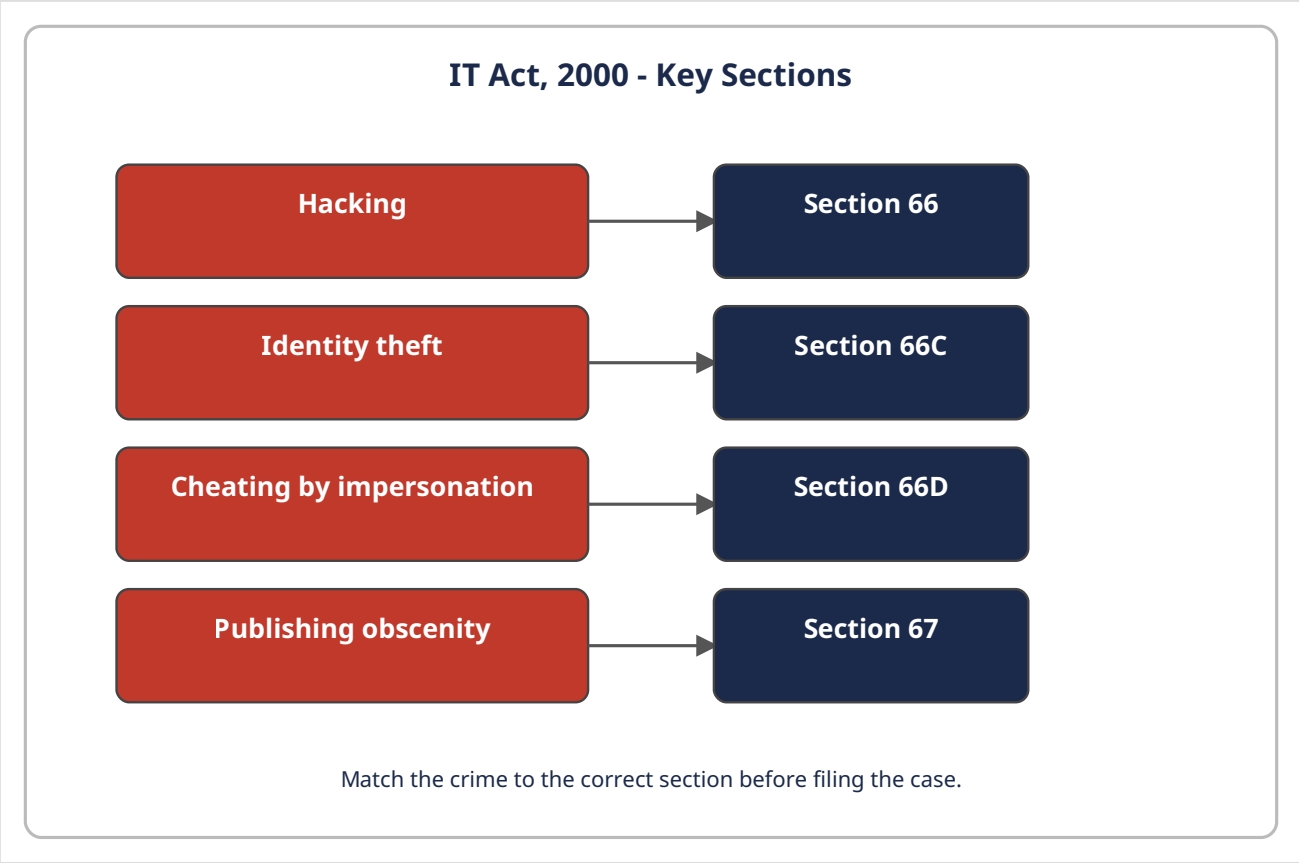
- **Key IT Act sections** - 43, 66, 66C, 66D, 66E, 67, 67B, 66F - what each one actually covers
- **Contravention vs crime** - the civil-or-criminal line every investigator must draw
- **BNS, BNSS, BSA** - the new laws since July 2024, and which old numbers are dead
- **Writing sections in FIRs** - the 5 mistakes that kill cases in court
- **BSA Section 63 certificate** - making your digital evidence court-ready

The Case That Opens This Chapter

A young man tampers with his friend's photo and posts it. At the station the mother cries - 'Sir, it was a child's mistake.'

- The inspector's reply: '**Section 66E of the IT Act - this is a crime**, not mischief'
- Her shock is India's biggest misconception - that **no law covers what happens on a phone**
- The truth: India has **complete cyber laws**. This module teaches you to apply them
- In the labs you will apply sections yourself, write an FIR, and prepare an evidence certificate

The IT Act 2000: The Foundation



- India's **first cyber law** - built for the early internet, overhauled by the **2008 amendment**
- Gives **legal recognition** to digital transactions and defines computer-related crimes
- **Understand** the sections - do not just memorise numbers; the labs test understanding

Section 43 vs Section 66: Intent Decides

The act is identical in both sections. **What changes is the mind behind it** - and that changes everything.

- **Section 43:** unauthorised access, viewing, copying, damaging data - a **civil** matter. Compensation, no jail
- **Section 66:** the same act done with **dishonest intent or deceit** - a **crime**. Imprisonment and fine
- Example: an employee views a salary sheet and photographs it - **43**. If he sells it to a rival - **66**
- Your job: **prove the intent** - prior planning, fake identity and repetition are your evidence

Section 66C: Identity Theft

The criminal does not break into the account. He **becomes** the account holder - and the system trusts him.

- Stealing and **using** someone else's password, OTP, or digital signature
- Creating accounts in **someone else's name**; messaging victims from a stolen ID
- A SIM taken on forged documents is **66C** too - the identity was stolen first
- Collect: login records, the fake profile, and proof the real owner never authorised it

Section 66D: The Fraud Workhorse

Most online fraud cases at your station will carry this section. Learn it cold.

- **Cheating by personation using a computer** - the computer or phone is the weapon
- Fake bank websites harvesting OTPs, fake job offers, callers **posing as bank officers**
- Pairs with **BNS Section 318 (cheating)** - IT Act for the method, BNS for the crime
- The **money trail** is your strongest evidence - bank statements, UPI transaction IDs, account details

Section 66E: Violation of Privacy

A private photo, shared without permission, can destroy a life in hours. **The law treats it as a crime, not a prank.**

- Capturing or **circulating someone's private image or video without consent**
- Includes morphing - a tampered photo posted to shame someone is **66E**
- Handle with dignity: statement in a **woman officer's presence**, victim's identity hidden
- Preserve fast: screenshots with URL and date-time before the content is deleted

Sections 67, 67A, 67B: Obscene Material

Three sections, one ladder of seriousness - and **the strictest one protects children**.

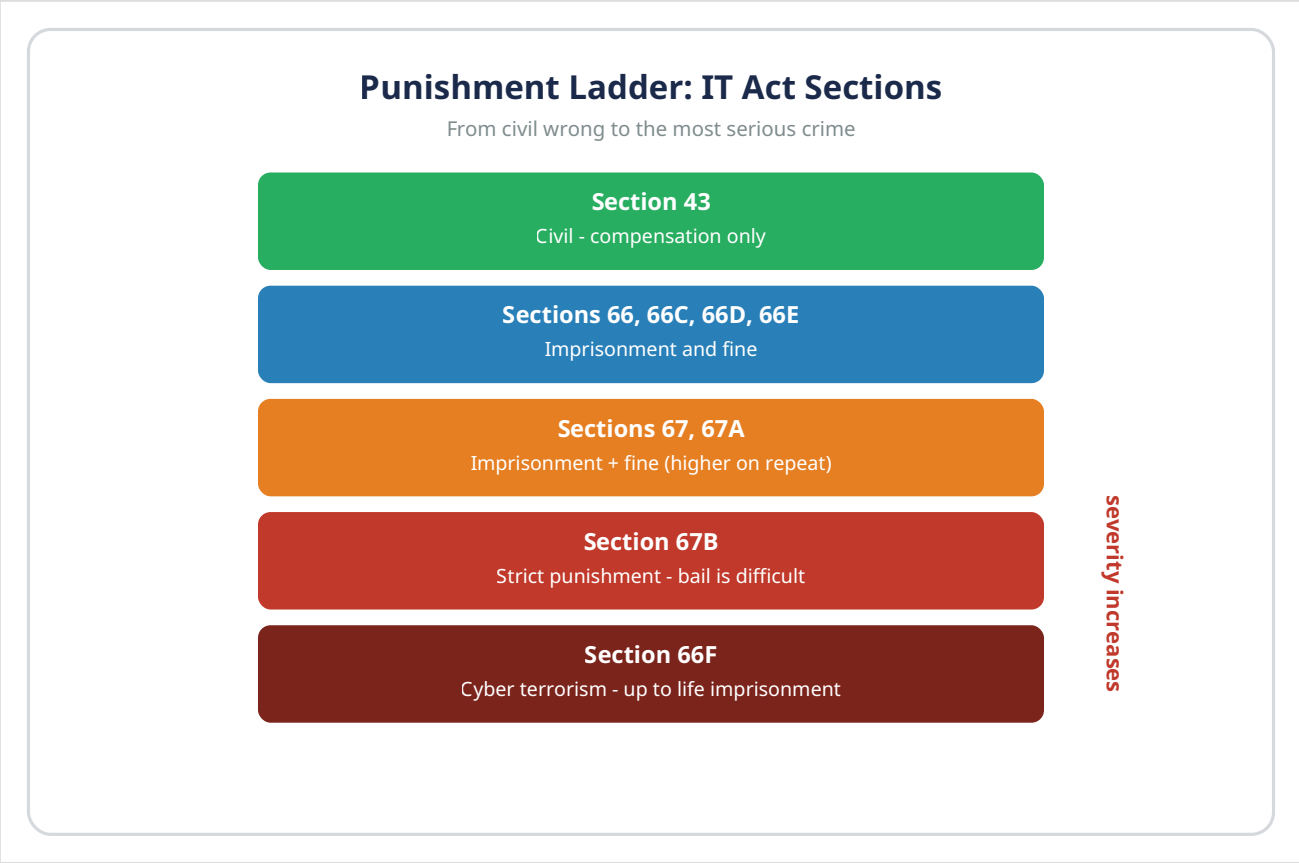
- **Section 67:** publishing obscene material in electronic form - punishment rises on repeat
- **Section 67A:** sexually explicit material - a step more serious
- **Section 67B:** material involving **children** - creating, circulating or possessing it is grave; **bail is difficult**
- Keep such material **strictly within investigation** - never forward it, not even 'as evidence'

Section 66F and Section 65

From the hospital server to the power grid - **some attacks are attacks on the nation itself**.

- **Section 66F – cyber terrorism:** attacks endangering India's security or integrity - up to **life imprisonment**
- Example: ransomware locking a hospital's servers - AIIMS Delhi, November 2022
- **Section 65:** tampering with computer source code - the insider who alters company code
- Serious attacks: inform **CERT-In** - India's nodal cyber emergency agency

Punishment Ladder



- From **civil compensation** (Sec 43) to **life imprisonment** (Sec 66F) - one ladder
- Copy this ladder into your **notebook** - it is your station-desk reference
- Punishment follows **facts and the court** - always read the section's actual text

Section 66A is DEAD - Never Write It

In **2015** the Supreme Court struck down Section 66A in **Shreya Singhal v. Union of India** - yet FIRs are still written under it.

- 66A punished 'offensive' online messages - the Court held it violated **freedom of speech**
- A repealed section in your FIR = a **dead case in court**
- The lesson: **the law must stay inside the Constitution** - and so must your FIR
- Before writing any section, ask: **is this section alive today?**

Contravention vs Crime



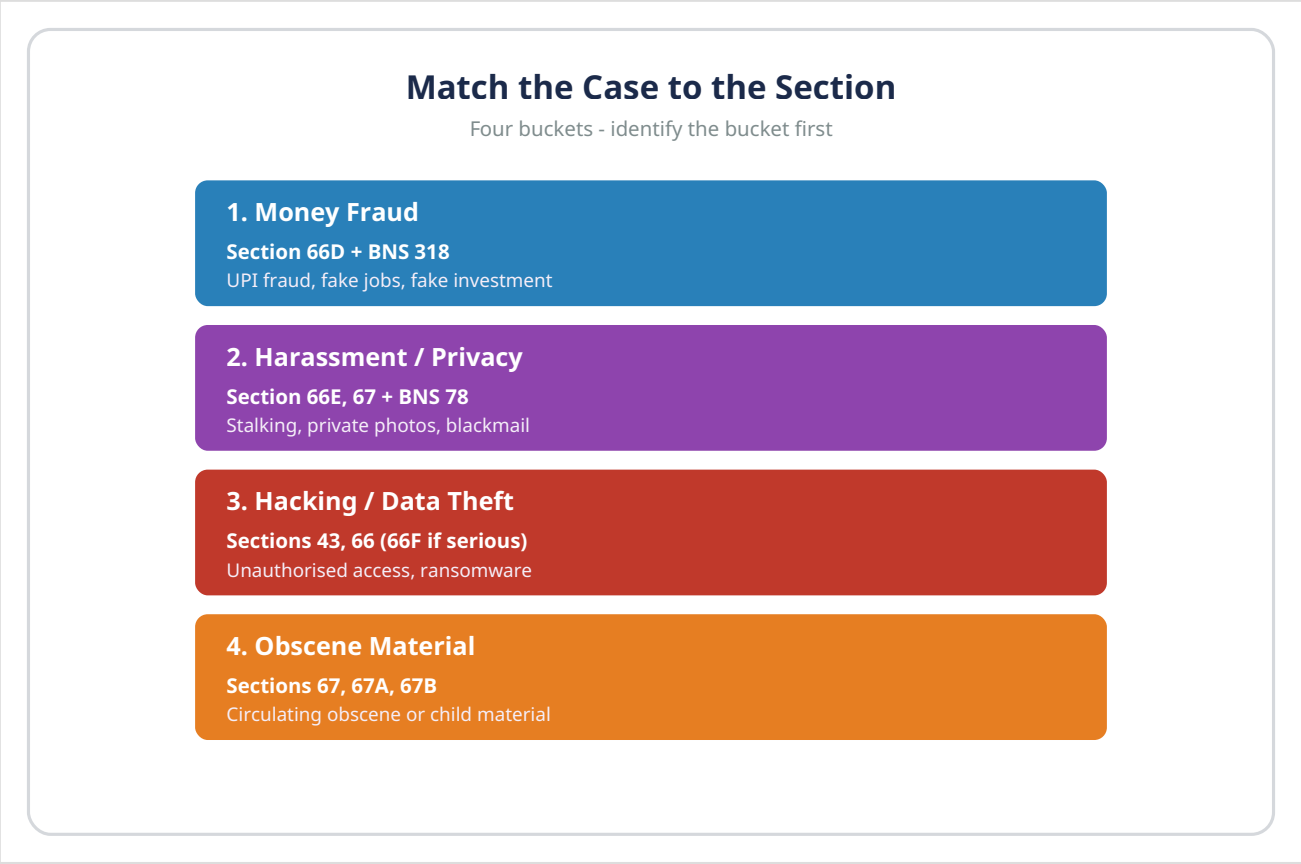
- **Contravention:** breaking a rule - civil. Fine or compensation. **No jail**
- **Crime:** an offence - jail, fine, or both
- Classify wrong and a criminal walks free - or an innocent faces a criminal case

Two Things Decide: Intent and Seriousness

The same act can be a mistake, a civil wrong, or a crime. **Two questions draw the line.**

- **Intent:** a file opened by mistake and closed at once is not even a contravention
- **Seriousness:** unlicensed office software - contravention; the customer database sold for cash - **crime**
- Prove intent with evidence: **prior preparation, fake identity, repetition**
- Lab 2 makes you decide six scenarios yourself - with an answer key

Four Buckets: Match the Case to the Section



- The moment a case arrives, **name its bucket** - the section then shows itself
- Most station cases are **Bucket 1: money fraud** - master it first
- Buckets 2 to 4 need different evidence and different victim handling

Bucket 1: Money Fraud - What to Collect

UPI fraud, fake jobs, fake investments, lottery traps - **different methods, one motive: money**.

- Sections: **IT Act 66D + BNS 318** (cheating) - the standard pair
- Collect **immediately**: bank statements, UPI transaction IDs, beneficiary account details
- Call **1930** first - money moves in minutes; the golden hour is real
- Follow the money trail - it names the mule, and the mule names the gang

Bucket 2: Harassment and Privacy

The victim here is often a **woman or a minor** - your procedure must protect dignity first, evidence second.

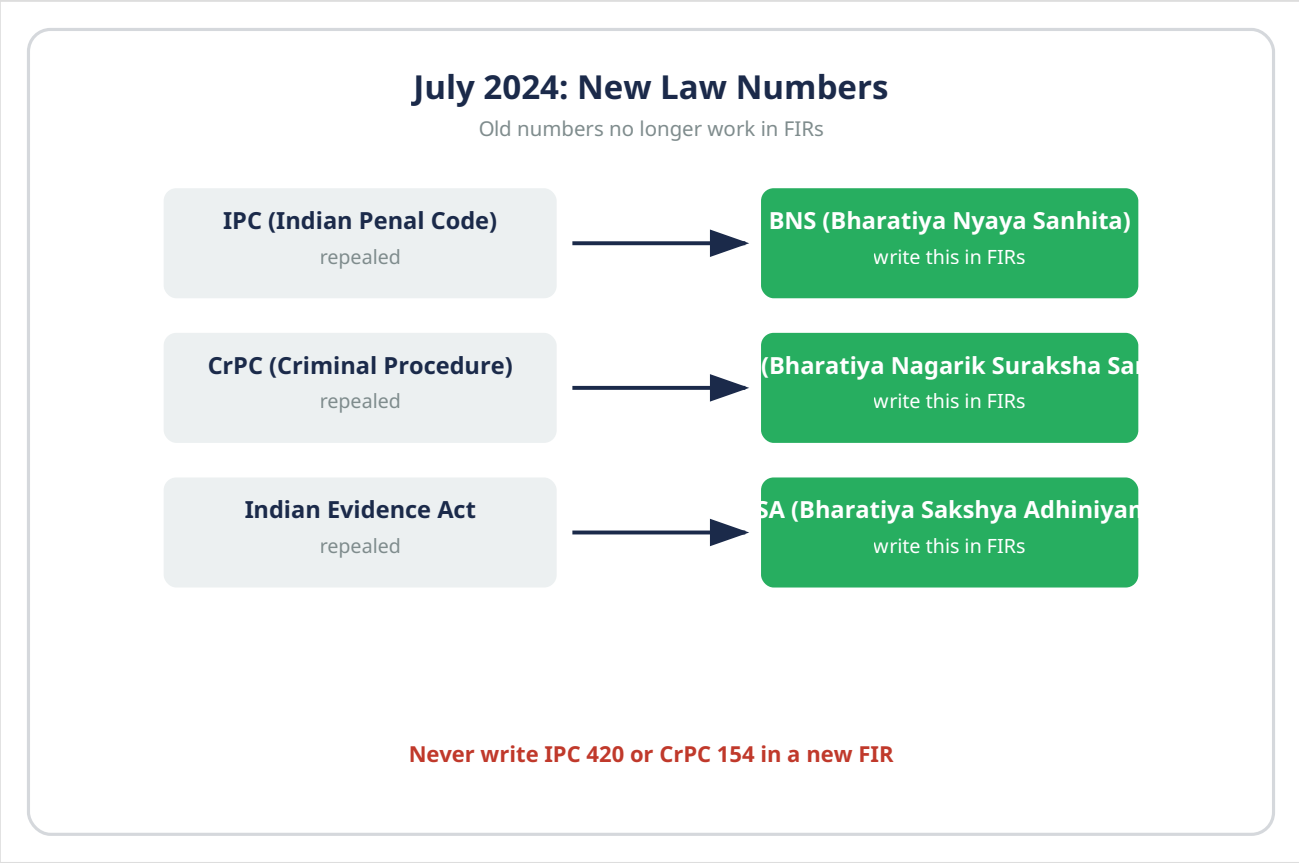
- Sections: **66E, 67** plus **BNS 78** (stalking) and women-safety provisions
- Statement in the **presence of a woman officer** - always
- **Never reveal** the victim's identity - not to media, not to outsiders
- Preserve: screenshots with URL and date-time, plus the victim's own account data download

Buckets 3 and 4: Hacking and Obscene Material

Technical cases need **technical evidence**; sensitive cases need **sensitive handling**.

- **Bucket 3 – hacking:** Sections 43, 66, and 66F for grave attacks; collect **logs, IP addresses, hash values**
- **Bucket 4 – obscene material:** Sections 67, 67A, **67B** - maintain dignity while handling evidence
- Keep such material **only within the scope** of investigation - do not spread it further
- Ransomware on critical systems: loop in **CERT-In** without delay

July 2024: New Law Numbers



- **BNS** replaces the IPC - crimes like cheating and fraud
- **BNSS** replaces the CrPC - notices, search, seizure, arrest procedure
- **BSA** replaces the Evidence Act - digital evidence gets clear recognition

What Actually Changed for You

Old numbers are dead. Writing IPC 420 or CrPC 154 in a 2026 FIR is a mistake - here is the new map.

- **BNS Section 318** (cheating) now pairs with IT Act 66D in fraud FIRs
- **BNSS** governs your **Section 94 notices** to banks and telecom companies
- **BSA Section 63** certificate makes electronic records admissible - learn its format
- Digital-device search and seizure rules now live in the **BNSS** - know them before you seize

BSA Section 63: The Evidence Certificate

Without this certificate, your screenshots and call records are **weak in court**. With it, they stand.

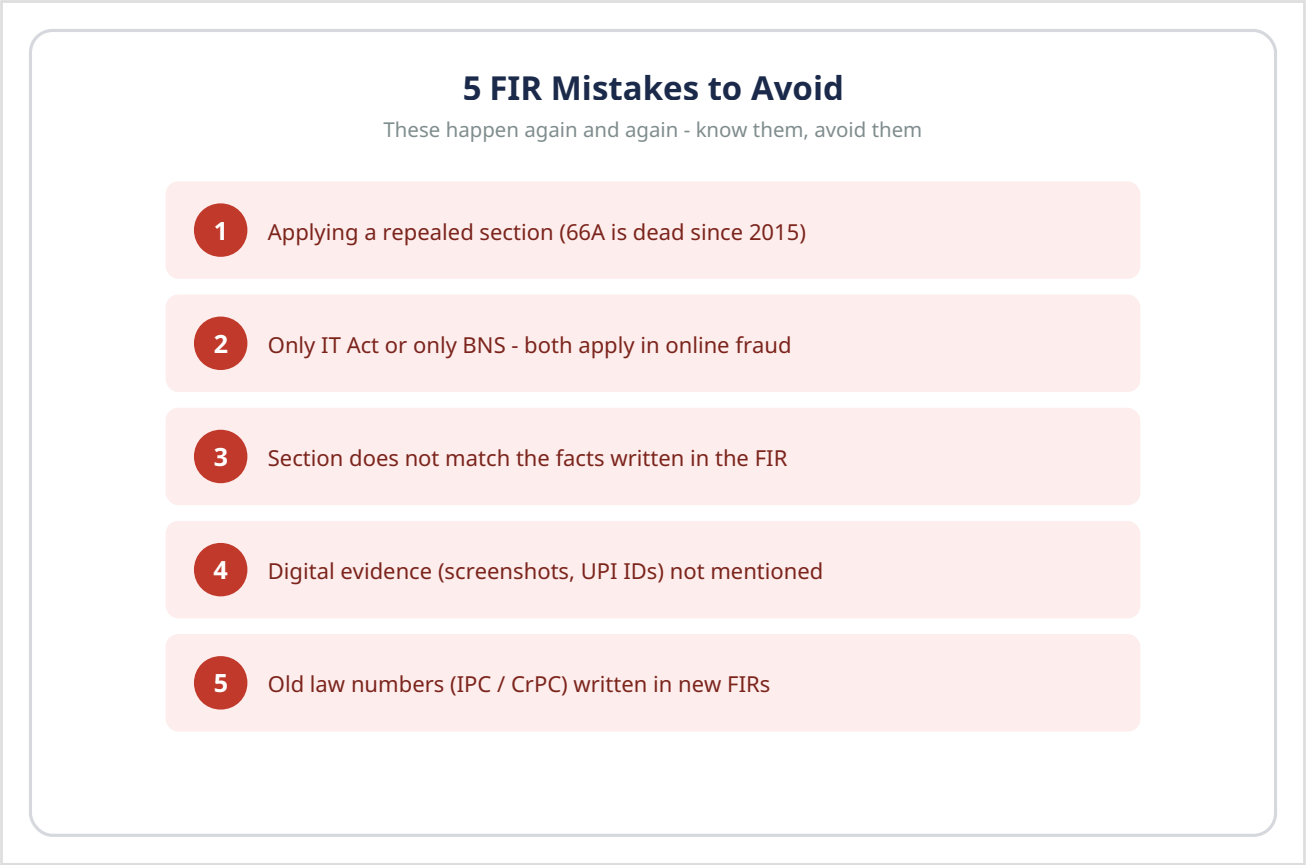
- Identify: the **device**, the **extraction method and tool**, who extracted it and **when**
- Include the file's **SHA-256 hash** - its digital fingerprint - taken right after extraction
- It must be **signed by the person who extracted** the record - not by someone else later
- Lab 3: you will fill a complete sample certificate on your own file

Powers: Interception, Blocking, Monitoring

The IT Act gives investigators **special powers** - but every power comes with a process. Skip it and **you** commit the offence.

- **Section 69 - interception:** needs an **authorised officer's order** - not an ordinary policeman's call
- **Section 69A - blocking:** the government can order websites and content blocked
- **Section 79:** intermediaries (Google, Meta, telecom firms) must share data on a **proper notice**
- The **Puttaswamy** privacy limit applies - interception without order can itself become a crime

5 FIR Mistakes That Kill Cases



- These five mistakes repeat in **station after station** - memorise this diagram
- A wrong section **weakens the case in court** - precision is not paperwork, it is justice
- Always write the **new** law numbers - BNS, BNSS, BSA

Two Mistakes in Detail

Two of the five mistakes deserve a closer look - **they are the most common and the most damaging**.

- **Section-fact mismatch:** the section must match what the FIR says - threat facts with fraud sections collapse
- **Only one law applied:** online fraud needs **both** - IT Act for the method (66D), BNS for the crime (318)
- **Mention digital evidence in the FIR itself** - screenshots, UPI IDs, call records; the BSA certificate follows
- Get a **senior officer's review** - a second pair of eyes catches what yours missed

The Case Diary Note: Three Questions

A good investigator applies sections by **thinking**, not by rote. Ask these three questions in every case.

- **1. What happened?** - facts first: who did what to whom, how. A computer used means an IT Act section is certain
- **2. What was the intent?** - mistake or dishonesty? Find evidence of intent, not suspicion
- **3. Whose loss, how much?** - woman or child victim? Look at protection sections too
- Write the answers, **then** choose the section - this method nearly eliminates wrong sections

Where to Complain: The Right Channel

The right section in the **wrong channel** still wastes time. Know all five routes.

- **cybercrime.gov.in** - the easiest online route, best for women and child victims
- **1930 helpline** - call **immediately** in money fraud; early calls freeze stolen money
- **Cyber police station** - written complaint, and always **take a receipt**
- **Adjudicating Officer** - every state's civil route for contraventions (Section 43-type matters)

Privacy: The Puttaswamy Boundary

In **2017** the Supreme Court declared privacy a **fundamental right**. It draws a line your investigation must never cross.

- Searching a phone or examining data needs **legal basis and proper process** - rummaging without it can trap you
- **DPDP Act 2023:** companies cannot use personal data without consent; citizens can see, correct and delete it
- Cite the DPDP Act when **demanding data** from companies - they must now answer where data sits
- The balance: **catch the criminal, protect the innocent's privacy** - both are the job

Real Case: Karnataka's Fake Call Centre

2022 - a call centre in Karnataka cheating **American citizens** over the phone. Busted by getting two things right.

- Registered under the **right IT Act sections** - the method matched the law
- Built on **solid digital evidence**: call records and computer data, properly preserved
- Lesson: right sections + solid evidence can bring down **even a large network** Source: The Hindu

Real Case: The Bulli Bai App

2022 - women's photos misused through an app. The accused sat in **different states**. The law still reached them.

- Mumbai Police applied **identity-theft and privacy** sections of the IT Act
- Investigation crossed state borders on **digital leads** - IPs, accounts, footprints
- Lesson: in online crime, **distance is no shield** - the right law plus digital investigation catches anyone Source: The Indian Express

Your Turn: Labs in This Module

Theory without practice is trivia. Chapter 5 has **four hands-on labs** - do them in order.

- **Lab 1 - Section matching:** apply the right section to 8 crime scenarios, with an answer key
- **Lab 2 - Contravention or crime:** decide 6 scenarios yourself and write one-line reasons
- **Lab 3 - BSA Section 63 certificate:** fill a complete sample certificate on your own file
- **Lab 4 - FIR drafting:** write BNS + IT Act sections into a UPI-fraud FIR

Key Takeaways

If you remember nothing else from Module 5, remember this:

- **66D + BNS 318** - the workhorse pair for online fraud
- **66A is dead since 2015** - writing it kills your FIR
- **Contravention or crime?** - intent and seriousness decide
- Since July 2024: **BNS, BNSS, BSA** - old numbers are gone
- **Every section needs its evidence** - fewer sections, solid proof
- Privacy is a **fundamental right** - investigate inside the law

Review Questions

- 1. An employee copies the salary sheet 'just to look', then emails it to a rival. Which sections apply at each stage - and why does the section change?
- 2. A girl's morphed photo goes viral. List the sections, the evidence to preserve in the first hour, and the victim-handling procedure.
- 3. Your FIR cites 'IPC 420 and IT Act 66A'. Identify every error and rewrite the sections correctly.
- 4. What must a BSA Section 63 certificate contain, and who must sign it? Why does it matter?
- 5. When can you intercept a suspect's communications - and what happens if you skip the required order?

NEXT: MODULE 6

OSINT: Open Source Intelligence

Email, phone, Google dorking, sock puppets, OPSEC